

24STCV09134 24STCV09134

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-08-07

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Case Number: 24STCV09134 Hearing Date: August 7, 2026 Dept: 514

Sandoval v.

Azteca Import LLC

24STCV09134

Order to Show Cause re: Why Plaintiff's Memorandum in Opposition to Defendant's
Motion for Summary Judgment Should not be Stricken

Defendant's Motion for Summary Judgment

Tentative

Ruling

On April 22, 2026,

Defendant Uncle Phil LLC ("Defendant") filed a motion for summary judgment or,
in the alternative, for summary adjudication.

The hearing was initially set for July 17 and was continued to August 7.

On July 17, 2026,

Plaintiff Judith Sandoval ("Plaintiff") filed an opposition to the motion. There is a problem with the page numbering of the opposition memorandum, which the Court assumes is advertent, but in any event a manual review reveals that the memorandum is 26 pages long. That is improper. (Cal. Rules of Court, rule 3.1113(d) ["In a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 20 pages."].)

Plaintiff did not seek permission to file an overly long memorandum.

On July 24, 2026, the

Court denied Defendant's ex parte application to file an overly long reply memorandum. The Court also set this Order to Show Cause re: Why the Opposition should not be Stricken.

Later on July 24, 2026, Plaintiff's counsel filed a declaration in response to the OSC. On August 4, 2026, Defendant filed a response to the declaration.

The Court has considered the arguments and evidence presented by both sides. Plaintiff has not shown good cause regarding why her opposition memorandum should not be stricken. This is a straightforward slip-and-fall case, and good cause has not been shown regarding why the arguments in opposition to Defendant's summary judgment motion cannot be made within 20 pages.

Accordingly, the Court ORDERS as follows:

The Court STRIKES the opposition memorandum (only) filed by Plaintiff on July 17, 2026.

The Court CONTINUES the hearing on Defendant's motion for summary judgment to September 30, 2026 (or to a later date convenient for the Court and counsel).

The Court GRANTS LEAVE to Plaintiff to file a new memorandum in opposition to the motion for summary judgment that does not exceed 20 pages in length. Plaintiff is NOT granted leave to file new evidence, a new request for judicial notice, or a new separate statement in opposition to the motion; the evidence and opposition separate statement filed on July 17, 2026, remain in the file and will be considered by the Court. The new opposition memorandum must be filed and served no later than 20 days before the hearing.

The Court GRANTS LEAVE to Defendant to file a new (replacement) reply to Plaintiff's opposition. This is an optional filing. Defendant may either (1) file a new reply or (2) stand on the reply filed on July 27, 2026. If a new (replacement) reply is submitted, it must be filed and served no later than 11 days before the hearing.

Defendant is

ordered to give notice.